

19STCV23612 19STCV23612

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Case Number: 19STCV23612 Hearing Date: September 15, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on

Motions to Strike

Plaintiffs' three Motions to Strike are denied.

BACKGROUND

Plaintiffs Francisco Lorenzo, individually and as successor in interest to the Estate of Amy Lorenzo and the Estate of Marlenne Lorenzo, and Angelina Nicolas (Plaintiffs) filed this action against Los Morales Trucking, Inc., Stanley Randle, and Doe defendants, alleging that a tractor trailer combination struck and killed Plaintiffs' two minor children as they crossed a roadway in a marked crosswalk.

The cause of action is: (1) Negligence.

Core/Related Grand Avenue Owner, LLC (Core/Related), Tishman Construction Corporation of California (Tishman), and Calex Engineering, Inc. (Calex Inc.) and Calex Engineering Company (Calex Company) each filed a Motion for Summary Adjudication. Plaintiffs filed a Motion to Strike directed at each. Core/Related, Tishman, and Calex Inc. and Calex Company each filed an Opposition.

LEGAL STANDARD

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: [¶] (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. [¶] (b) Strike

out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code of Civil Procedure section 436.)

Code of Civil Procedure section 435, subdivision (a)(2), provides: “The term ‘pleading’ means a demurrer, answer, complaint, or cross-complaint.”

ANALYSIS

Plaintiffs move to strike each Motion for Summary Adjudication and its supporting papers, on the ground that they were not drawn or filed in conformity with the laws of this state.

A Motion for Summary Adjudication is not a pleading. Section 436 therefore does not authorize the Court to strike one. First, section 435 defines a pleading as “a demurrer, answer, complaint, or cross-complaint.” (Code Civ. Proc., § 435, subd. (a)(2).) Second, both subdivisions of section 436 confine the Court’s power to any matter inserted in a pleading and to a pleading or a part of one. (Code Civ. Proc., § 436.) Third, the six papers listed in each notice are a notice of motion, a memorandum of points and authorities, a separate statement, a request for judicial notice, a compendium of evidence, and a supporting declaration. (Mot., at p. 2:9-26.) None of the six is a demurrer, an answer, a complaint, or a cross-complaint.

Plaintiffs rely on the phrase “not drawn or filed in conformity with the laws of this state” in section 436, subdivision (b). However, that phrase describes a quality of the pleading struck; it does not enlarge the class of papers subject to that subdivision.

Section 436 permits the Court to act “upon a motion made pursuant to Section 435, or at any time in its discretion.” Plaintiffs separately invoke the Court’s “inherent power to control litigation before [it].” (Rutherford v. Owens-Illinois (1997) 16 Cal.4th 953, 967; see Code Civ. Proc., §§ 128, 187.)

However, Plaintiffs’ remaining contentions go to whether each Motion for Summary Adjudication should be granted. Plaintiffs may raise them in opposition to that motion. (Code Civ. Proc., § 437c, subd. (b)(2).) The Court is not persuaded that the expense of preparing that opposition is a reason to entertain the Motions to Strike. Therefore, to the extent the Court has the inherent authority to entertain a motion directed at another party’s motion,

the Court declines to exercise that discretion.

Accordingly, Plaintiffs' three Motions to Strike are denied.

Plaintiffs request that, if the Court does not strike the motions, the Court advance the hearings on the Motions for Summary Adjudication to November 5, 2026. (Reply, at p. 3:22-26.) Plaintiffs raised the request for the first time on reply, and no party responded to it. The request is denied without prejudice.

CONCLUSION

Plaintiffs' three Motions to Strike are denied.